

**SUBSTITUTE FOR
HOUSE BILL NO. 5920**

A bill to amend 1975 PA 46, entitled
"An act to create the office of the legislative corrections
ombudsman; to prescribe the powers and duties of the office, the
ombudsman, the legislative council, and the department of
corrections; and to provide remedies from administrative acts,"
by amending sections 1, 4, and 5 (MCL 4.351, 4.354, and 4.355),
section 1 as amended by 1998 PA 318 and sections 4 and 5 as amended
by 2018 PA 571.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

- 1 Sec. 1. As used in this act:
- 2 (a) "Administrative act" includes an action, omission,
3 decision, recommendation, practice, or other procedure of the
4 department.
- 5 (b) "Complainant" means a prisoner, ~~ex~~-legislator, **family**



1 member, corrections employee, or prisoner advocate who files a
2 complaint under section 4.

3 (c) "Corrections employee" means an employee of the department
4 of corrections or a private contractor at a correctional facility
5 owned or operated by the department of corrections.

6 (d) "Corrections officer" means a guard, or other employee, of
7 a state correctional facility who performs duties involving the
8 transportation, care, custody, or supervision of prisoners.

9 (e) ~~(e)~~ "Council" means the legislative council established
10 under section 15 of article IV of the state constitution of 1963.

11 (f) ~~(d)~~ "Department" means the department of corrections.

12 (g) "Family member" means 1 of the following:

13 (i) A family member of a corrections officer.

14 (ii) A family member of a prisoner who advocates on behalf of
15 that prisoner.

16 (h) ~~(e)~~ "Legislator" means a member of the senate or the house
17 of representatives of this state.

18 (i) ~~(f)~~ "Office" means the office of the legislative
19 corrections ombudsman created under this act.

20 (j) "Official" means an official or employee of the
21 department.

22 (k) ~~(g)~~ "Ombudsman" means the office of legislative
23 corrections ombudsman.

24 (l) ~~(h)~~ "Prisoner" means ~~a person~~ **an individual** committed to or
25 under the jurisdiction of the department.

26 ~~(i) "Official" means an official or employee of the department~~
27 ~~of corrections.~~

28 (m) "Prisoner advocate" means an individual or organization
29 who advocates on behalf of a prisoner or prisoners.



(n) "Qualified expert" means a professional with substantial experience in a field, including, but not limited to, environmental, medical, or mental health professionals.

Sec. 4. (1) The ombudsman may commence an investigation ~~upon~~ ~~either~~ **on any** of the following:

(a) Receipt of a complaint from a ~~prisoner, a legislator,~~ **complainant** or on the ombudsman's own initiative, concerning an administrative act that is alleged to be contrary to law or contrary to departmental policy.

(b) The ombudsman's own initiative for significant prisoner health and safety issues, correctional facility security, and public safety, and other matters for which there is no effective administrative remedy.

(2) By not later than 120 business days after the effective date of the amendatory act that added this subsection, the ombudsman shall create a standardized complaint form that a complainant may use, and make the standardized complaint form available in both of the following ways:

(a) Electronically on the ombudsman's website.

(b) In hard copy in all correctional facility law libraries and other locations in correctional facilities as requested by the ombudsman.

(3) On receiving a complaint from a complainant, the ombudsman shall notify the complainant that the complaint was received.

(4) ~~(2)~~ Subject to approval of the council, the ombudsman shall establish procedures for receiving and processing complaints, conducting investigations, holding hearings, and reporting the findings resulting from the investigations.

Sec. 5. (1) ~~Upon~~ **On** request and without the requirement of any



1 release, the ~~ombudsman shall be given~~ **department shall give the**
2 **ombudsman** access to and physical or electronic copies of all
3 information, records, and documents in the possession of the
4 department that the ombudsman considers necessary in an
5 investigation, including, but not limited to, prisoner medical
6 health records, prisoner mental health records, and prisoner
7 mortality and morbidity records. ~~Upon~~ **On** request, the ombudsman may
8 interview any of the following individuals whom the ombudsman
9 considers necessary in an investigation:

10 (a) An individual employed by or retained under contract by
11 the department.

12 (b) An individual employed by or retained under contract by a
13 private contractor that operates a facility or institution that
14 houses prisoners under the jurisdiction of the department.

15 (2) **The ombudsman may consult or contract with qualified**
16 **experts for assistance with investigations, inspections, hearings,**
17 **or other work of the ombudsman. Subject to this subsection, the**
18 **qualified expert must be permitted to enter facilities with the**
19 **ombudsman and bring any necessary testing equipment into**
20 **correctional facilities. The ombudsman or qualified expert may**
21 **bring photographic equipment into correctional facilities to take**
22 **pictures that the ombudsman or qualified expert determines to be**
23 **necessary, if taking those pictures does not compromise**
24 **correctional facility security. The ombudsman shall give the**
25 **department 48 hours' advance notice when the ombudsman considers it**
26 **necessary to take an expert into a correctional facility. The**
27 **ombudsman shall provide the department with the name of the expert,**
28 **a completed law enforcement information network form concerning**
29 **that expert to allow the department to conduct a background check**



on that expert, the expert's credentials, including any licensing information in the expert's area of expertise if applicable, and a description of any testing equipment the expert may need. The department may search any testing equipment for contraband that is brought into a correctional facility by an expert or ombudsman. An expert must adhere to state or national standards developed for the expert's area of expertise. The department may ask the ombudsman to reconsider taking testing equipment into a correctional facility if the department determines that the testing equipment may interfere with the operations of the correctional facility. The department shall provide the ombudsman with a written statement explaining the specific impact testing equipment will have on the operations of the correctional facility for the ombudsman to consider. The department shall notify the ombudsman if a requested testing procedure is under litigation, and the ombudsman must delay that testing until the litigation has been completed.

(3) ~~(2) Upon~~ On request and without notice, the ombudsman must be granted entrance to inspect at any time any premises under the control of the department. One ombudsman staff ~~person~~ **member** must also be granted entry into a correctional facility or the department's "think tank" or "command center" during emergency situations including, but not limited to, correctional facility disturbances, riots, and hostage incidents, and must be provided with updates regarding the status of the emergent situation as well as the department's efforts to address the situation. The ombudsman staff ~~person~~ **member** granted entry for an emergency situation under this subsection is present for observation and to report on the emergency situation.

(4) ~~(3)~~ The ombudsman may hold informal hearings and may



1 request that any person appear before the ombudsman, or at a
2 hearing, and give testimony or produce documentary or other
3 evidence that the ombudsman considers relevant to a matter under
4 investigation.

5 (5) ~~(4)~~—The ombudsman shall arrange an interview under
6 subsection (1) in cooperation with the department at a time and
7 location that does not interfere with the operation of a
8 correctional facility.

9 Enacting section 1. This amendatory act does not take effect
10 unless House Bill No. 5921 of the 103rd Legislature is enacted into
11 law.